

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1928

By: Murdock and Burns of the
Senate

and

Moore of the House

COMMITTEE SUBSTITUTE

An Act relating to waters and water rights; amending 82 O.S. 2021, Section 1020.15, which relates to waste prohibited; prohibiting the issuance of groundwater permits for certain facilities that use certain cooling systems; amending 82 O.S. 2021, Section 1020.19, which relates to metering of wells; removing certain meter use requirement; authorizing the Oklahoma Water Resources Board to implement certain allocation to encourage conservation after certain date; specifying requirements for participation; prohibiting excessive use; requiring development of certain voluntary groundwater use measurement program; requiring issuance of annual certification; requiring submission of certain certification with annual water use report; exempting certain wells from provisions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.15, is amended to read as follows:

1 Section 1020.15. A. The Oklahoma Water Resources Board shall
2 not permit any groundwater user to commit waste by:

3 1. Drilling a well, taking, or using groundwater without a
4 permit, except for domestic use;

5 2. Taking more groundwater than is authorized by the permit;

6 3. Taking or using groundwater in any manner so that the water
7 is lost for beneficial use;

8 4. Transporting groundwater from a well to the place of use in
9 such a manner that there is an excessive loss in transit;

10 5. Using groundwater in such an inefficient manner that
11 excessive losses occur;

12 6. Allowing any groundwater to reach a pervious stratum and be
13 lost into cavernous or otherwise pervious materials encountered in a
14 well;

15 7. Permitting or causing the pollution of a fresh water strata
16 or basin through any act which will permit fresh groundwater
17 polluted by minerals or other waste to filter or otherwise intrude
18 into such a basin or subbasin. The Board shall be precluded from
19 determining whether waste by pollution will occur pursuant to the
20 provisions of this paragraph if the activity for which the applicant
21 or water user intends to or has used the water as specified under
22 Section 1020.9 of this title is required to comply with rules and
23 requirements of or is within the jurisdictional areas of
24 environmental responsibility of the Department of Environmental

1 Quality or the Oklahoma Department of Agriculture, Food, and
2 Forestry;

3 8. Drilling wells and producing groundwater therefrom except in
4 accordance with the well spacing previously determined by the Board;

5 9. Using groundwater for air conditioning or cooling purposes
6 without providing facilities to aerate and reuse such water; ~~or~~

7 10. Failure to properly plug abandoned water wells in
8 accordance with rules of the Board and file reports thereof; or

9 11. Using groundwater for cooling purposes at a data processing
10 facility or data center through open-air evaporative cooling systems
11 or any other cooling technology that consumes groundwater through
12 evaporation or discharge without recirculation. Groundwater permits
13 for such facilities shall only be issued if the applicant
14 demonstrates that the cooling system utilizes closed-loop,
15 dielectric immersion, or other comparably low-consumptive cooling
16 technologies that substantially recirculate groundwater and minimize
17 consumptive loss as determined by the Board.

18 B. Except as otherwise provided by paragraph 7 of subsection A
19 of this section, any employee of the Board having evidence that an
20 act of waste is being committed in his or her presence, or after
21 investigation of a complaint filed by another individual, shall take
22 steps to assure that the waste ceases. Such steps shall include but
23 shall not be limited to pursuing voluntary compliance, obtaining the
24 issuance of a cease and desist order by the Executive Director,

1 instituting action in a court of competent jurisdiction to enjoin
2 the waste, pursuing a suspension of any permit or other
3 administrative remedies by the Board, and filing a complaint in the
4 district court of the county wherein such violation has occurred,
5 and it shall be the duty of the district attorney of said county to
6 prosecute such complaint.

7 C. In cases of waste by pollution pursuant to paragraph 7 of
8 subsection A of this section, any complaint or investigation, or any
9 enforcement matter other than an individual proceeding involving the
10 suspension of an Oklahoma Water Resources Board permit shall be
11 referred to and subject to the jurisdiction of the Department of
12 Environmental Quality or other appropriate state environmental
13 agency or state agency with limited environmental responsibility.

14 SECTION 2. AMENDATORY 82 O.S. 2021, Section 1020.19, is
15 amended to read as follows:

16 Section 1020.19. ~~Upon request of a majority of the landowners~~
17 ~~residing within a basin or subbasin, the Board is authorized to~~
18 ~~require that water wells be metered and that such meters as the~~
19 ~~Board shall approve be utilized by the applicant and placed under~~
20 ~~seal, subject to reading by the agents of the Board at any time.~~
21 ~~The Board may also require that the applicant report the reading of~~
22 ~~such meters at reasonable intervals.~~

23 A. To encourage groundwater conservation, beginning January 1,
24 2027, the Oklahoma Water Resources Board shall provide a five-year

flex allocation of groundwater usage based off the previously determined allocated annual use of the basin or subbasin. A five-year flex allocation shall not require a new permit for existing permit holders. A five-year flex allocation shall be available for:

1. Existing permit holders for groundwater use permits in basins or subbasins, based upon the maximum annual yield determination at the time of the original application;

2. New applicants for groundwater use permits in basins or subbasins based upon the current maximum annual yield determination;
and

3. New and existing applicants and temporary permit holders for groundwater use permits in basins or subbasins where the maximum annual yield has yet to be determined.

B. An applicant for a five-year flex allocation shall be required to:

1. Submit an annual usage report of the prior year's usage from a Board-approved water measurement system; and

2. Pay the annual groundwater permit fee.

C. A five-year flex allocation shall allow the permit holder to exceed the determined annual allocation in any year of the five-year allocation; provided, that the applicant shall adhere to the cumulative annually determined allocation of the basin or subbasin over the five-year period. The permit holder shall not exceed the

1 permitted annual allocation by over one hundred fifty percent (150%)
2 in any of the five (5) years.

3 D. 1. For all permit holders not participating in the five-
4 year flex allocation pursuant to this section, a groundwater
5 irrigation district created pursuant to the Groundwater Irrigation
6 District Act or a conservation district participating in a
7 conservation cost-share program pursuant to Section 3-3-101 et seq.
8 of Title 27A of the Oklahoma Statutes shall develop a voluntary
9 groundwater use measurement program that provides Board-approved
10 measuring systems to members, on a loan or cost-share basis, for use
11 in verifying the volume of water pumped from wells and irrigation
12 systems to ensure system efficiency and proper accounting of water
13 use.

14 2. The groundwater irrigation district or conservation district
15 shall issue an annual certification that the permit holder has
16 participated in the groundwater use measurement program pursuant to
17 paragraph 1 of this subsection. The certification shall be
18 submitted with the permit holder's annual water use report.

19 E. Nothing in this section shall apply to domestic wells.

20 SECTION 3. This act shall become effective November 1, 2026.

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